Strata disputes | NSW Government

nsw.gov.au/housing-and-construction/strata/disputesPrinted: 24 January 2022

Strata disputes

Issues between strata owners or residents can happen from time to time. They can also happen between owners/residents and the owners corporation.

If you are not able to resolve issues, there are steps you can follow.

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If you have an issue with a strata manager or building manager (https://www.nsw.gov.au/housing-and-construction/strata/strata-complaints), find out what you can do.

Key information

- The steps to follow will depend on whether your issue is with another resident, or with the owners corporation, or with your strata manager or building manager.
- Always try to resolve a dispute by speaking to the other person or people first
- There is a free mediation service offered by NSW Fair Trading
- Going to the NSW Civil and Administrative Tribunal is a last resort.

How to resolve a dispute

If the issue is between residents, owners, or the owner corporation, there are four general steps to resolving it:

1. Talk about it (#Talkaboutit)
2. Speak to the owners corporation (#Speaktothe)
3. Use Fair Trading's mediation service (#domediation)
4. Go to the NSW Civil and Administrative Tribunal (#gotothe).

1. Talk about it

Most issues can be resolved by talking it out with the other party. Often, the other party is not aware of how something is impacting you.

If your issue is with another resident or owner, for example your neighbour's dog is howling or if someone is smoking and it drifts into your property, try telling them so they are aware it is bothering you. Be clear about the outcome you would like and give them an opportunity to fix the problem.

If your issue is with the owners corporation and relates to the management of the strata scheme, tell your strata manager or the strata committee about your issue and what you would like the owners corporation to do about it.

If you're a strata committee member and the issue is between the owners corporation and a resident or owner, use your strata scheme's own internal dispute resolution process (if there is one). This might include talking to the resident/owner or sending a warning letter before taking formal action such as issuing a notice to comply or applying for mediation.

See **examples of common issues and how to talk it out (#toc-examples-of-common-issues-and-how-to-talk-it-out)**.

Make an enquiry with NSW Fair Trading (https://www.cas.fairtrading.nsw.gov.au/icmspublicweb/forms/RealEstateEnquiry.html) using the 'Real estate, property management and strata' form.

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2. Contact the owners corporation

Issues with another resident or owner

If speaking with the owner or resident doesn't resolve it, contact the owners corporation.

The owners corporation might decide to:

- speak to them on your behalf,
- issue a warning letter or a notice to comply, or
- apply for mediation.

Issues with the owners corporation

If your issue is not resolved by speaking with the strata manager or the strata committee, you can ask for a 'motion' about your issue to be added to the agenda of a meeting.

This means that a vote can be taken on the issue and a formal decision made.

If the motion is lost or the owners corporation refuses to hold a meeting, you can apply for mediation to try and resolve your issue.

See **strata meetings (https://www.nsw.gov.au/node/15302)** for more information on the process to get your issue added to the next agenda.

What's a notice to comply?

A 'notice to comply' is a written warning that asks a person to stop breaking by-laws.

It must be written using the correct form.

Notice to Comply (PDF 270.08KB) (https://www.nsw.gov.au/sites/default/files/2022-03/notice-to-comply.pdf)

A copy of the by-law being broken must be given to the person along with the notice.

The owners corporation may allow the strata committee or strata manager to give notices. If this is the case, a notice to comply can be given without holding a general meeting.

If an owner or resident continues to breach a by-law after the notice to comply is given, the owners corporation can:

> ask for an order from the Tribunal telling the person to pay a penalty.
> apply for mediation with the resident who is breaching the by-law. If that does not resolve the issue, the owners corporation can then apply to the Tribunal for a compliance order.

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3. Use Fair Trading's mediation service

If you still aren't able to solve the issue, many disputes are eligible for mediation through NSW Fair Trading.

Mediation is free and you can **apply online (https://stratamediation.fairtrading.nsw.gov.au/StrataFormCreator)**.

Fair Trading's mediation service is only available for disputes governed by strata law, which means if the Tribunal can make an order about the issue, Fair Trading is able to offer you mediation.

Download the **Tribunal's fact sheet (https://ncat.nsw.gov.au/content/dam/dcj/ctsd/ncat/documents/factsheets/ccd_factsheet_strata_schemes.pdf)** before lodging a mediation application.

For example, Fair Trading cannot offer mediation if you are seeking an apology or to evict a tenant.

Examples of the types of matters that are suitable for mediation include:

- repairs and maintenance, water damage, renovations to common property
- air conditioners

- meeting procedures, including validity of meetings and decisions
- by-laws, finances and insurance
- noise, parking, pets and nuisance smoke
- fire safety.

Mediation brings both sides together to talk about the issue and help them to try and reach an agreed settlement. Mediators are neutral and don't take sides.

Only the owners corporation (not an individual) can apply for mediation if the issue is about:

- an agreement (contract) with a building or strata manager
- a neighbouring scheme.

Mediation is compulsory for most strata disputes before lodging an application with the Tribunal. However some disputes bypass the mediation process and need to be heard directly by the Tribunal. These include:

- compulsory appointment of a strata manager (also called a managing agent)
- allocation of unit entitlements
- access to a lot by the owners corporation to inspect or repair common property
- penalties
- inspection of strata records.

This list doesn't cover everything so contact **Fair Trading (https://www.fairtrading.nsw.gov.au/)** if you're unsure whether your issue is suitable for mediation.

How to ask for mediation

Submit a request using the **online application form (https://stratamediation.fairtrading.nsw.gov.au/StrataFormCreator)**. It only takes about 15 minutes to complete.

You will get an email confirming your application has been received. You will also be given a case number which you should keep somewhere safe.

You can also visit **Service NSW (https://www.service.nsw.gov.au/service-centre)** and apply in person.

Fair Trading invites the other party to the mediation via email. If an email address is not available, an invitation is sent in the mail.

The invitation asks the other party to tell Fair Trading if they accept or decline the request for mediation and sets a tentative mediation date.

If the other party accepts, the mediation is confirmed and booked in.

If they decline, you then have the option to apply for an order at the **Tribunal (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)**

Who attends the session?

Ideally, all people involved in the issue should participate in the session. If you want to bring a solicitor, everyone must agree to this beforehand.

If an interpreter is needed, the mediator will arrange this for you.

What happens during the mediation

The mediator will contact each party on the telephone numbers provided and link all the calls together. Each party then gets an opportunity to briefly describe the dispute and say what they are hoping to achieve from mediation.

The mediator will then help the parties identify options and negotiate a possible settlement.

If an agreed settlement is reached, the mediator helps write it out.

Come prepared

Have all relevant information at hand and think about what you want to say beforehand.

You don't need to have legal advice to attend mediation, but you can if want to.

If the issue is not resolved by mediation, you then have the option to apply for an order at the Tribunal.

Resolving disputes quickly means you can return to your regular routine without worrying about going through a legal process, which can take months.

4. Tribunal hearings

Hopefully, a solution can be found before needing the NSW Civil and Administrative Tribunal, such as talking it out with the other person or through mediation.

Once you apply to the Tribunal, your dispute becomes a legal matter and the decision will be legally binding.

Going to the Tribunal is a last resort. Try to talk it out with the other person first. Mediation is also often a compulsory first step.

How to apply

To apply to the Tribunal, you need to complete a form and pay a fee.

Fill out the 'Strata and community scheme application form' on the **Tribunal's website (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)**.

Costs can vary. See **Tribunal fees (https://www.ncat.nsw.gov.au/ncat/forms-and-fees/fees-at-ncat.html#Consumer1)** for details.

The Tribunal can only make certain types of orders, so **check what orders the Tribunal can make (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html#Check0)** before you apply.

If one person has refused mediation, or if mediation isn't appropriate for the issue, the Tribunal may agree to hear the matter.

Once you submit the form, the Tribunal will give a copy of your application to the owners corporation.

By law, the owners corporation must then give a copy of your application to all other owners in the strata scheme and put a copy on the noticeboard (if there is one).

Hearings over the phone are possible in some circumstances.

How to present my case

Most people represent themselves, but in some cases this can be done by someone else, such as a friend or family member, or lawyer.

You must give your written permission for someone else to attend for you.

If you would like a lawyer, you will need to get permission from the Tribunal first.

For more information about the process, visit the **Tribunal's strata page (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)**.

When will the Tribunal make a decision?

Decisions usually take at least six weeks once everyone has finished giving their evidence.

Decisions can take longer, depending on the circumstances.

If the matter is urgent (for example, you are facing financial problems), you might be able to get an urgent hearing. Check what the Tribunal classifies as an urgent issue.

For more information visit the **Tribunal website (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)** for details on process.

Examples of common issues and how to talk it out

1 Parking

If a resident is parking in your spot or their car is blocking a driveway, you should talk to the owner of the car.

If you don't know who owns the car, you may wish to leave a note on their windshield and tell the strata manager or the owners corporation.

If it's not a resident's car, you might want to think about asking the owners corporation to add an item to the agenda of the next general meeting to discuss solutions.

This could include signage, barriers or a security system.

2 Noise

You have the right to live peacefully in your home.

If you're having an issue with noise, the first step is to try to find out where it's coming from.

If you can find out who is making the noise, you should have a conversation with them.

If you don't know where the noise is coming from or talking to the resident doesn't solve the issue, speak to the strata manager or owners corporation.

They may be able to investigate and issue a Notice to Comply if the noise is in breach of the by-laws.

3 Pets

If your neighbour has a dog who is constantly barking or a cat that's destroying your garden, the first step is to check the by-laws. Look for by-laws about pets, noise, or damage to property.

If the issue is not a breach of by-laws, a friendly conversation with the owner will usually resolve the issue.

If there appears to be a breach of the by-laws or the issue isn't resolved, you should report it to the strata manager or the owners corporation.

4 Rubbish

If you think a resident is leaving rubbish where they shouldn't be, or it's interfering with your right to enjoy your property, you should first check the by-laws for rules about rubbish.

Next, talk to the resident to see if you can solve the issue.

If that doesn't fix the issue, you can raise it with your strata manager or the owners corporation.

5 Smoking

If someone is smoking and it drifts into your property, try talking to them to ask them to stop.

If not, check your by-laws to see what the rules are about smoking or smoke drift.

If the person is in breach of the by-laws, you can contact the owners corporation who can issue a notice to comply if they don't stop.

Even if there is no specific by-law, the smoker cannot cause a nuisance or hazard to others.

6 Breaking other by-laws

If you notice any other by-laws being broken, you should first speak to the person and ask them to stop.

If the behaviour is harmful or dangerous (for example, reckless driving on a shared driveway), you should report it straight away.

If a person continues to break a by-law, report it to the strata manager or owners corporation. They can take steps to solve the issue.

Learn more about **rules for living in strata (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)**.

Rental problems

If you are renting in strata, it is best for the tenant and landlord or agent to try to resolve any issues between themselves. Here are some basic steps to follow:

1. Carefully read the terms of the rental agreement
2. Talk through the issues with all parties involved
3. Put in writing any agreement that you reach on how to resolve the issue.

If you can't agree on how to fix the problem, you can use Fair Trading's free **tenancy and real estate complaint service (https://www.fairtrading.nsw.gov.au/about-fair-trading/our-services/resolving-issues/residential-tenancy-complaints)**. This service is for NSW tenants, landlords and agents.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday

In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Parking (https://www.nsw.gov.au/housing-and-construction/strata/living/parking)

If you own a car, check whether your lot includes a parking space and how you are allowed to use that space.

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By-laws (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)

Understand the strata by-laws where you live, how to change them, and what to do if there's a breach of the by-laws in your strata scheme.

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Who's who in strata (https://www.nsw.gov.au/housing-and-construction/strata/roles)

Understand the roles of the owners corporation and strata committee, strata manager and building manager.

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Pets (https://www.nsw.gov.au/housing-and-construction/strata/living/pets)

Understand if you can own a pet, and what to do if there's a problem.

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Helpful links

- Apply to Fair Trading for strata mediation → (https://stratamediation.fairtrading.nsw.gov.au/StrataFormCreator)
- Apply to NCAT (the Tribunal) to resolve a strata dispute → (https://ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)

- **Find out more about your rights when buying products in NSW. (https://www.fairtrading.nsw.gov.au/buying-products-and-services)**

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